HEADNOTE

"1. An alternative method authorised under R. 275 RoP need not be a method prescribed by the internal law of the State of destination for the service of documents in domestic proceedings. Otherwise, the reference in R. 274.1(b) RoP to an alternative method authorised under R. 275 RoP would have no autonomous meaning.
2. Deemed service and actual service are distinct concepts. A determination under R. 275.3(b) RoP that the Statement of claim is deemed served on a particular date does not, by itself, establish actual service within the meaning of R. 277(b) RoP. Actual service may nevertheless be established independently on the basis of the factual circumstances underlying that determination.
3. Actual service does not require proof that the defendant personally opened or retained the documents. As follows from Article 22(1)(b) of Regulation (EU) 2020/1784, delivery to the defendant's residence may suffice. A subsequent refusal does not negate a factual delivery which has already occurred where it does not constitute a valid exercise of the addressee's right under Article 12 of that Regulation to refuse the document on linguistic grounds.
4. In exercising its discretion under R. 9.3(a) RoP, the Court must take account of all the circumstances of the case, including the reasons for the failure to comply with the period, the conduct of the party and its representative, and the promptness with which the Court and the opposing party were informed of the relevant circumstances. A party seeking an extension on account of an unforeseen circumstance should inform the Court without undue delay once that circumstance becomes apparent, where such communication remains reasonably possible.
5. R. 353 RoP permits the Court to rectify clerical mistakes, errors in calculation and obvious slips in a decision or order. The circumstances contemplated by R. 353 RoP presuppose a discrepancy between the decision intended by the Court and its material expression. R. 353 RoP does not permit the Court, under the guise of rectification, to reconsider or alter a substantive legal assessment contained in the decision or to substitute a different legal conclusion for the one originally expressed.
6. Once an application to set aside a decision by default complies with the requirements of R. 356.2 RoP, the Court does not retain a general discretion to refuse it on the ground that the default is considered insufficiently justified or excusable. The explanation required by R. 356.2 RoP does not operate as a plea for relief requiring the applicant to prove that the default occurred without fault or was otherwise excusable. It enables the Court to identify the cause and scope of the default and may inform the exercise of its

> *discretionary powers in the subsequent conduct of the proceedings, including case-management orders, the allocation of costs and a notice under R. 356.3 RoP that a further decision by default shall be final.*
> *7. The notice required by R. 356.3 RoP must be express and clear. It must specifically inform the party that, in the event of a further default, the resulting decision by default shall be final and that the remedy under R. 356 RoP will no longer be available. Mere notice that a decision by default will be issued does not satisfy that requirement.*
> *8. Referral under R. 242.2(b) RoP may be justified where a procedural error prevented the inter partes written procedure from being completed before the Court of First Instance and deciding the action on appeal would require the Court of Appeal to conduct the remaining written procedure for the first time."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 1 993 350

BROWN MUSHROOMS FOR COMMERCIAL PRODUCTION

KEYWORDS
Service of statement of claim
extension of time period
rectification of decision and orders
decision by default
referral back

Rule 275 Service of the Statement of claim by an alternative method or at an alternative place

SUMMARY
The Court of Appeal Luxembourg issued a procedural order. The patent at issue relates to brown mushrooms for commercial production. According to the headnotes of the decision, an alternative service method under the Rules of Procedure need not comply with domestic law requirements. This ensures that the Rules of Procedure maintain their independent meaning. Deemed service and actual service are legally distinct concepts. A determination that a claim is deemed served does not automatically prove actual service occurred. However, actual service may still be established separately through factual circumstances. In particular, actual service does not require proof that the defendant personally received documents. Delivery to the defendant's residence can satisfy this requirement. A subsequent refusal cannot undo a delivery that already happened unless it constitutes a valid linguistic objection. When exercising discretion to extend time limits, courts must consider all circumstances of the case. This includes the reasons for delay, the parties' conduct, and how promptly they informed the court. Furthermore, the court may rectify only clerical mistakes and obvious errors in its decisions. This power cannot be used to reconsider substantive legal assessments or change the court's original conclusions. When an application to set aside a default judgment meets procedural requirements, the court lacks general discretion to refuse it. The explanation required by the rules enables the court to understand the default's cause and scope. The court may use this information to manage the case and allocate costs accordingly. Additionally, any notice warning of a final default judgment must be express and clear. It must specifically state that further defaults will result in a final decision without remedy. A mere announcement that a default decision will issue does not satisfy this requirement. Finally, referral to a higher court may be justified where procedural error prevented completion of written proceedings. This applies when deciding the appeal would require the appellate court to conduct remaining procedures for the first time.